

1916 : Return to:

Essex County Greenbelt
Association, Inc.
82 Eastern Avenue
Essex, MA 01929

2005122300449 Bk:25225 Pg:138
12/23/2005 14:14:00 OTHER Pg 1/19

CONSERVATION RESTRICTION

The undersigned, Boxford Trails Association/Boxford Open Land Trust, Inc. (BTA/BOLT), a Massachusetts nonprofit corporation incorporated under the laws of the Commonwealth of Massachusetts with an address of 7 Elm Street, P.O. Box 95, Boxford, Massachusetts 01921, for nominal consideration, hereby GRANTS, with QUITCLAIM COVENANTS, to The Essex County Greenbelt Association, Inc., a Massachusetts nonprofit corporation incorporated under the laws of the Commonwealth of Massachusetts with an address of 82 Eastern Avenue, Essex, Massachusetts 01929, its successors and permitted assigns, in perpetuity and exclusively for conservation purposes, a Conservation Restriction on a parcel of land located in Boxford, Essex County, Massachusetts containing approximately 15 acres shown as the parcel labeled "Robert M. & Elizabeth L. Hacking, Remaining Land" on a "Plan of Land in Boxford, Property of Robert M. & Elizabeth L. Hacking," Essex Survey Service, Inc., dated July 30, 1976 and recorded with the Essex South District Registry of Deeds in Plan Book 144, Plan 35 attached hereto as Exhibit A and incorporated herein by reference (the "Property"). Said Boxford Trails Association/Boxford Open Land Trust, Inc. (BTA/BOLT) and its successors in title to the Property are hereinafter called the "Grantor" and The Essex County Greenbelt Association, Inc. (ECGA) and its successors and permitted assigns are hereinafter called the "Grantee". For Grantor's title see deed recorded with Essex South District Registry of Deeds at Book 23683, Page 502.

I. PURPOSES

This Conservation Restriction is defined in and authorized by Sections 31-33 of Chapter 184 of the Massachusetts General Laws and otherwise by law. Its purposes are to assure that the Property will be retained in its natural, scenic and undeveloped condition and to prevent any use of the Property that will significantly impair or interfere with the conservation values of the Property. The protected conservation values and the public benefits resulting from the protection of the Property in the manner provided in this Conservation Restriction include the following, without limitation:

A. The Property provides significant scenic, aesthetic, scientific, educational, recreational, and historic value in its present state as a natural area and open space which has not been subjected to development incompatible with said uses;

B. The Property contains an important tributary to Fish Brook, an important watershed, which is itself a tributary of the Ipswich River and protects part of the Fish Brook and Ipswich River watershed, one of the most stressed watersheds in the nation;

C. The Property contains diverse woodlands, freshwater wetlands and upland habitat representing a diversity of plant and wildlife habitat important to sustaining the region's biodiversity;

D. The Property is known to contain rare and endangered species such as the Blanding's Turtle and provides supporting habitat for these and other rare and endangered species;

E. The Property abuts other protected open space and trails owned by the Town of Boxford, BTA/BOLT and ECGA thereby increasing the ecological viability and scenic values of the area;

F. The Grantor and Grantee recognize the uniqueness of the Property as a distinctive Massachusetts landscape embodying the special character of the region in which the Property is located and have the common purpose of conserving the natural values of the Property for this generation and future generations and have therefore agreed to impose this Conservation Restriction on the Property for the specific purpose of providing the highest degree of legal protection for the Property; and

G. The 2001 Open Space and Recreation Plan of the Town of Boxford identifies conservation restrictions as one of the techniques to help implement the Town's open space goals.

Therefore, in order to preserve the Property in perpetuity in its present natural, scenic, and open condition, the Grantor conveys to the Grantee a perpetual Conservation

Restriction within the meaning of Chapter 184, Section 31 et. seq. of the General Laws of Massachusetts, as amended.

II. PROHIBITED AND PERMITTED ACTIVITIES AND USES

The terms of this Conservation Restriction are as follows:

A. Prohibited Activities and Uses. Except as otherwise herein provided, the Grantor shall neither perform nor permit others to perform any of the following acts or uses in, on, over or under the Property:

1. Construction or placing of any building, structure, facility or improvement on, over or under the Property, including but not limited to tennis courts, landing strips or pads, mobile homes, swimming pools, septic systems, roads, signs, fences, billboards or other advertising display, utilities, conduits, poles, antennas, towers, monopoles, windmills, solar panels, docks, wharfs, or other temporary or permanent structures, facilities, or improvements of any kind on, over or under the ground;
2. Dumping or placing of soil, grass clippings, compost, yard debris or other substances on the ground as landfill, or dumping or placing of vehicle bodies or parts, junk, trash, refuse, solid or chemical waste or unsightly or offensive materials, or the installation of underground storage tanks;
3. Cutting, removal or destruction of trees, grasses, shrubs or other vegetation;
4. Mining, excavating, dredging or removal of loam, peat, sand, gravel, soil, rock or other mineral substances or natural deposits except as necessary for proper drainage or soil conservation and then only in a manner which does not impair the purposes of this Conservation Restriction after consultation with and approval by the Grantee;
5. Any residential or industrial use shall be prohibited and any institutional or commercial use inconsistent with the purposes of this Conservation Restriction shall be prohibited;

6. Use of motorized vehicles of any nature or kind, including but not limited to cars, trucks, motorcycles, all-terrain vehicles and snowmobiles, except such as may be reasonably required by police, firemen or other governmental agents in carrying out their lawful duties or for reasonable access by persons with disabilities, and except for cars, trucks and other vehicles used for purposes permitted by this Conservation Restriction as provided in Paragraph B below;
7. The use, landing, or storage of aircraft, helicopters, or similar machines or devices, except as reasonably required by police, firefighters or other emergency personnel or government agents in carrying out their lawful duties;
8. Use of the Property in any manner or for any purpose except for open space, wildlife habitat or outdoor recreational and educational purposes or other purposes that permit the Property to remain predominantly in its natural condition;
9. Activities detrimental to wildlife habitat, drainage, flood control, water or soil conservation, water quality, or erosion control;
10. Conveyance of a part or portion of the Property alone, or division or subdivision of the Property (as compared to conveyance of the Property in its entirety which shall be permitted, subject to the provisions herein); without the prior written approval of the Grantee;
11. Any other use of the Property or activity which would impair the conservation values unless such use or activity is necessary and desirable in the opinion of the Grantee and at the Grantee's sole discretion for the protection of the conservation values that are subject to this Conservation Restriction;
12. The use of the Property for (a) transferring development rights to any property, whether or not the receiving land is adjacent to the Property; (b) calculating permissible lot yield of any other land; and (c) use in any calculations involving

development of any other land, whether or not adjacent to the Property, in any manner whatsoever;

13. The use of the Property for camping, hunting, trapping or discharge of firearms; or

14. Any acts or uses which in the opinion of the Grantee and at the Grantee's sole discretion are contrary to the purposes of this conservation restriction.

B. Reserved Rights: Exceptions to Prohibited Activities and Uses.

Notwithstanding anything contained in Paragraph A, the Grantor reserves the right to conduct or permit the following activities on the Property provided that such uses and activities do not impair the purposes of this Conservation Restriction or other significant conservation interests:

1. Within forested areas, in accordance with generally accepted forest management practices, the selective pruning and cutting of trees, shrubs and other vegetation to prevent, control, or remove hazards, disease or insect damage, or fire, all in accordance with a cutting plan approved by the Grantee;
2. The erection and maintenance of a minimal number of signs with respect to (a) the location of boundary lines, (b) hunting and trespassing, (c) the identity and address of occupants if applicable, (d) identifying the Grantor as the owner of the Property, (e) identifying the Grantee as the holder of this Conservation Restriction, (f) regulating the use of the Property by visitors, and (g) educating the public about the conservation values protected;
3. The right, but not the obligation, to conduct ecological restoration activities to maintain and restore plant and wildlife habitat. Prior to commencing any restoration or maintenance activities, restoration plans shall be developed by the Grantor after consultation with the Grantee and with the Grantee's approval;

4. Passive outdoor recreational and educational activities such as walking, running, horseback riding, fishing, bicycling, snowshoeing and cross-country skiing;
5. Activities designed to control exotic plant species on the Property in accordance with a plan approved by the Grantee;
6. Construction and maintenance of trails for passive recreational activities listed in Paragraph 4 above;
7. Such other activities requested by the Grantor and expressly approved by the Grantee as are consistent with the purposes of this Conservation Restriction.

The exercise of any right reserved by the Grantor under this Paragraph B shall be in compliance with the following: (a) then-current building, zoning, planning, and conservation regulations, bylaws or ordinances applicable to the Property, (b) any special permits or variances pertaining to the Property, (c) the Wetlands Protection Act (General Laws Chapter 131, Section 40), and (d) all other applicable federal, state and local laws and regulations. The inclusion of any reserved right in Paragraph B of Section II requiring a permit from a public agency merely means that the Grantor may have a right to request a permit, it does not mean that the Grantee takes any position on whether such permit should be issued.

C. Unspecified Activities and Uses are Prohibited. All acts and uses not expressly permitted in Paragraph B of Section II are prohibited unless otherwise authorized by the Grantee pursuant to Paragraph D below.

D. Notice to and Approval by Grantee. Whenever notice to or approval by the Grantee is required under the provisions of Paragraphs A, B or C of Section II, or any other provision or condition herein, the Grantor shall notify the Grantee in writing not less than thirty (30) days prior to the date the Grantor intends to undertake the activity in question. The notice shall describe the nature, scope, design, location, timetable and any other material aspect of the proposed activity in sufficient detail to permit the Grantee to make an informed judgment as to its consistency with the purposes of this Conservation

Restriction. The purpose of requiring such notice is to afford Grantee with an adequate opportunity to ensure that the activities in question are designed and carried out in a manner that is consistent with the purposes of this Conservation Restriction and to monitor their implementation. Where the Grantee's approval is required by the terms of this Conservation Restriction, the Grantee shall grant or withhold its approval in writing within thirty (30) days of receipt of the Grantor's written request therefore. Grantee's approval may be withheld upon a determination by the Grantee at its sole discretion that the action as proposed would be inconsistent with the purposes of this Conservation Restriction.

III. AFFIRMATIVE COVENANTS OF THE GRANTOR

A. **Payment of Taxes.** The Grantor shall pay before delinquency all taxes, assessments, betterments, liens, fees and charges levied on or assessed against the Property by any federal, state, or local government authority or other competent authority or entity (collectively "taxes"), and shall furnish the Grantee with satisfactory evidence of payment upon request.

B. **Subordination of Mortgage.** The Grantor shall record at the appropriate Essex County Registry of Deeds simultaneously with this Conservation Restriction all documents necessary to subordinate any mortgage, promissory note, loan, equity credit line, refinance, assignment of mortgage, lease, financing statement or any other agreement which gives rise to a security interest affecting the Property to this Conservation Restriction.

C. **Adverse Possession.** The Grantor represents and warrants that to the best of their knowledge no person has occupied or used the Property without the Grantor's permission or has openly claimed ownership of the Property as against the Grantor or the Grantor's predecessors in title or has conducted continuous activities or uses on the Property (such as logging, camping or similar uses). Grantor agrees that if any such activity is observed now or in the future, Grantor shall immediately notify the Grantee and shall cooperate with Grantee to notify such persons of their wrongful entry onto the Property.

IV. ACCESS

A. Access by the Grantee. The Grantee through its duly designated officers, directors, members, employees, representatives or agents shall have the right to enter the Property following reasonable notice and at reasonable times and in a reasonable manner for the purpose of inspecting the Property, determining compliance with the terms of this Conservation Restriction and preventing, abating or remedying any violations thereof. The Grantee shall have the right, but not the obligation, at its sole expense, to perform any act required to preserve, conserve or promote the natural habitat of wildlife, fish or plants located on the Property. The Grantee shall have the right to erect and from time to time replace, at appropriate locations near the boundaries of the Property, suitable signs identifying the Grantee as the holder of this Conservation Restriction.

B. Access by the Public. The Grantor and the Grantee recognize that certain portions of the Property are presently used by the general public to pass and repass by foot, horseback, snowshoe, cross country ski, and bicycle for purposes of quiet outdoor recreational and educational activities. The Grantor and its successors and assigns shall permit the continuance of such activities, provided (1) that any such activity shall be limited to daylight hours only; (2) that all such activities shall be confined to the limits of established trails; (3) that no motor vehicles of any kind shall be permitted; (4) that no camping, hunting, trapping or discharge of firearms shall be conducted; (5) that no dumping, waste disposal, or littering of any kind be allowed; (6) that no activity of a commercial nature be allowed; and (7) that any such activity be subject to other rules and regulations deemed necessary and mutually established by the Grantor and the Grantee. The Grantor hereby reserves the right to alter the locations of established trails, after consultation with the Grantee and with the Grantee's approval, provided that as so relocated, neither the conservation values of this Conservation Restriction nor access to and passage through the Property is impaired. To the extent permitted by law, the Grantor and the Grantee hereby expressly disclaim any duty to maintain the Property or warn persons who may enter upon the same. Pursuant to M.G.L. c. 21, s. 17c, neither the Grantor nor the Grantee is liable to any member of the public for injuries to person or property sustained by such person while on the Property in the absence of willful, wanton, or reckless conduct.

V. LEGAL RIGHTS AND REMEDIES OF THE GRANTEE

A. Legal and Injunctive Relief. The rights hereby granted shall include the right to take any and all actions with respect to the Property as may be necessary or appropriate, with or without order of court, to remedy, abate or otherwise enforce any violations hereof, as well as the right to enforce this Conservation Restriction by appropriate legal proceedings and to obtain injunctive and other equitable relief against any violations, including without limitation relief requiring restoration of the Property to its condition at the time of this grant (it being agreed that the Grantee may have no adequate remedy at law), and shall be in addition to, and not in limitation of, any other rights and remedies available to the Grantee.

B. Actions to Prevent or Remedy Violations. The Grantee shall have the right to take appropriate actions to prevent, abate, or remedy violations of this Conservation Restriction.

C. Reimbursement of Costs of Enforcement. The Grantor and the successors and assigns of the Grantor covenant and agree to reimburse the Grantee for all reasonable costs and expenses (including without limitation reasonable counsel fees) incurred in enforcing this Conservation Restriction or in taking reasonable measures to remedy or abate any violation thereof, provided that a violation of this Conservation Restriction is acknowledged by the Grantor or determined by a court of competent jurisdiction to have occurred.

D. Grantee's Disclaimer of Liability. By its acceptance, the Grantee does not undertake any liability or obligation relating to the condition of the Property.

E. Non-Waiver by Grantee. Enforcement of the terms of this Conservation Restriction shall be at the discretion of the Grantee, and any forbearance by the Grantee to exercise its rights under this Conservation Restriction shall not be deemed or construed to be a waiver.

F. Acts Beyond Grantor's Control. Nothing contained in this Conservation Restriction shall be construed to entitle Grantee to bring any action against Grantor for

any injury to or change in the Property resulting from causes beyond the Grantor's control, including but not limited to, fire, flood, storm and earth movement, or from any prudent action taken by the Grantor under emergency conditions to prevent, abate, or mitigate significant injury to the Property resulting from such causes.

G. Hold Harmless Clause. Grantor hereby releases and agrees to hold harmless, and indemnify Grantee and its members, directors, officers, employees, agents, and contractors and the heirs, personal representatives, successors, and assigns of each of them (collectively "Indemnified Parties") from and against any and all liabilities, penalties, fines, charges, costs, losses, damages, expenses, causes of action, claims, demands, orders, judgments, or administrative actions, including, without limitation, reasonable attorneys' fees, arising from or in any way connected with: (1) injury to or the death of any person, or physical damage to any property, resulting from any act, omission, condition or other matter related to or occurring on or about the Property, regardless of the cause, unless due solely to the negligence of any of the Indemnified Parties; (2) the violation or alleged violation of, or other failure to comply with any state, federal, or local law, regulation, or requirement, by any person other than the Indemnified Parties, in any way affecting, involving, or relating to the Property; (3) the presence or release in, on, under, from, or about the Property, at any time, of any substance now or hereafter defined, listed or otherwise classified pursuant to any federal, state, or local law, regulation, or requirement, as hazardous, toxic, polluting, or otherwise contaminating to the air, water or soil, or in any way harmful or threatening to human health or the environment, unless caused solely by any of the Indemnified Parties. By its acceptance of this Conservation Restriction, the Grantee does not undertake any liability or obligation relating to the condition of the Property, including but not limited to, compliance with hazardous materials or other environmental laws and regulations.

VI. ASSIGNMENT BY GRANTEE

The benefits of this Conservation Restriction shall be deemed to be in gross and the Grantee and its successors and assigns shall have the right to assign all or a portion of its right, title and interest hereunder to a "Qualified Organization" as defined in Section 170 (h) (3) of the Internal Revenue Code provided that such assignee shall also be an eligible donee of a conservation restriction as set forth in Chapter 184, Section 32 of the

General Laws of Massachusetts, and provided further that, as a condition of such assignment, the assignee is required to hold this Conservation Restriction and enforce its terms for conservation purposes. The Grantee shall notify the Grantor in writing at least thirty (30) days in advance of any such assignment, but the failure of the Grantee to do so shall not impair the validity of this Conservation Restriction or limit its enforceability in any way.

VII. SUBSEQUENT TRANSFERS

A. **Reference to Conservation Restriction in Future Deeds.** The Grantor agrees to incorporate the terms of this Conservation Restriction by reference in any deed or other legal instrument by which they divest themselves of any interest in all or a portion of the Property, including without limitation, any leasehold interest or option.

B. **Representations of the Grantee.** The Grantee represents that it is a not for profit corporation, that it has a perpetual existence, that it is organized and operated for the purpose of preserving and conserving natural resources, natural habitats, environmentally sensitive areas and for other charitable, scientific and educational purposes, that it has both the necessary funds and commitment to hold this Conservation Restriction exclusively for conservation purposes in perpetuity and to enforce its terms, and that it is a "Qualified Organization" as that term is defined in Section 170 (h) (3) of the Internal Revenue Code of 1986, as amended.

C. **Required Notifications of Transfers.** The Grantor shall notify the Grantee in writing at least thirty (30) days before conveying the Property, or any part thereof or interest therein (including a leasehold interest or option). The Grantee shall notify the Grantor in writing at least thirty (30) days before it assigns this Conservation Restriction. Any failure by Grantor or Grantee to provide notification as provided for herein shall not invalidate or extinguish this Conservation Restriction or limit its enforceability in any way.

VIII. EXTINGUISHMENT

A. Termination only by Judicial Proceeding. This Conservation Restriction can only be terminated or extinguished, whether in whole or in part, by judicial proceedings in a court of competent jurisdiction, based on circumstances arising in the future that render the purposes of this Conservation Restriction impossible to accomplish.

B. Grantee's Receipt of Property and Development Rights. The Grantor and Grantee agree that the donation of this Conservation Restriction gives rise, for purposes of this paragraph, to a property right, immediately vested in the Grantee, with a fair market value that is at least equal to the proportionate value that this Conservation Restriction, determined at the time of the gift, bears to the value of the unrestricted Premises at that time and represents all land development rights associated with the Property.

C. Value of Grantee's Property Right. Such proportionate value of the Grantee's property right shall remain constant.

D. Grantee's Right to Recover Proportional Value. If any change in conditions ever gives rise to extinguishment or other release of the Conservation Restriction under applicable law, which extinguishment or release must be accomplished by judicial proceedings in a court of competent jurisdiction, then the Grantee, on a subsequent sale, exchange or involuntary conversion of the Property, shall be entitled to a portion of the proceeds equal to such proportionate value, subject however, to any applicable law which expressly provides for a different disposition of proceeds.

E. Cooperation Regarding Public Auction. Whenever all or any part of the Property or any interest therein is taken by public authority under power of eminent domain, or if all or any part of this Conservation Restriction is otherwise extinguished by act of public authority then the Grantor and the Grantee shall cooperate in recovering the full value of all direct and consequential damages resulting from such action. All related expenses incurred by the Grantor and the Grantee shall first be paid out of any recovered proceeds, and the remaining proceeds shall be distributed between the Grantor and the Grantee in shares equal to such proportionate value.

F. Continuing Trust after Disposition of Conservation Restriction. The Grantee shall use its share of the proceeds in a manner consistent with the conservation purpose set forth herein.

IX. BINDING EFFECT; INTERPRETATION

A. Running of the Benefit. The benefits of this Conservation Restriction shall be deemed to be in gross and the Grantee shall have the right to assign its interests herein to the extent and in the manner provided in Section VI.

B. Running of the Burden. The burdens of this Conservation Restriction shall be deemed to run with the Property, shall be enforceable in perpetuity against the Grantor, the Grantor's successors in title to the Property, and any person holding any interest therein, by the Grantee, its successors and assigns and its duly designated officers, directors, members, employees or agents as holders of this Conservation Restriction.

C. Termination of Rights and Obligations. Notwithstanding anything to the contrary contained herein, the rights and obligations under this Conservation Restriction of any party holding any interest in the Property shall terminate upon transfer of that party's interest in the Property. Liability for acts or omissions occurring prior to any transfer and liability for any transfer in violation of this Conservation Restriction shall survive the transfer.

D. Prior Encumbrances. This Conservation Restriction shall be in addition to and not in substitution of any other restrictions or easements of record affecting the Property.

E. Pre-Existing Rights of the Public. The approval of this Conservation Restriction by any municipal or state authority is not to be construed as representing the existence or nonexistence of any pre-existing rights of the public, if any, in and to the Property. Any pre-existing rights of the public are not affected by the granting of this Conservation Restriction.

F. Execution of Instruments. The Grantee is authorized to record or file any notices or instruments appropriate to assuring the perpetual enforceability of this Conservation Restriction; and the Grantor on behalf of themselves and their successors and assigns appoint the Grantee their attorney-in-fact to execute, acknowledge and deliver any such instruments on their behalf. Without limiting the foregoing, the Grantor and their successors and assigns agree themselves to execute any such instrument upon request.

G. Effective Date. The Grantor and the Grantee intend that the restrictions arising hereunder take effect when all the requisite signatures pursuant to Section 32 of Chapter 184 of the General Laws of Massachusetts have been obtained and this document has been recorded in the appropriate Essex County Registry of Deeds.

H. Controlling Law. The interpretation of this Conservation Restriction shall be governed by the laws of the Commonwealth of Massachusetts.

I. Liberal Construction; Severability. This Conservation Restriction shall be liberally construed in favor of the grant to effect its conservation purposes and the policies and purposes of M.G.L. Chapter 184, Sections 31-33. If any provision of this instrument is found to be ambiguous, an interpretation consistent with the purposes of this Conservation Restriction that would render it valid shall be adopted over any interpretation that would render it invalid. If any provision or condition of this Conservation Restriction shall be declared invalid, the remaining provisions shall not be affected.

J. Entire Agreement. This instrument sets forth the entire agreement of the parties regarding this Conservation Restriction and supercedes all prior discussions, negotiations, understandings or agreements.

K. Non-Merger. No future assignment of Grantor's or Grantee's interest in the Property or future acquisition of any interest in the Property by Grantor or Grantee shall cause this Conservation Restriction to merge with the fee or render any terms unenforceable pursuant to the so-called Doctrine of Merger.

L. Notices. Any notice, demand, request, consent, approval, or other communication that either party desires or is required to give pursuant to this Conservation Restriction is deemed delivered upon receipt and shall be in writing and delivered by hand, by facsimile or by first class mail and addressed as follows:

To Grantor: BTA/BOLT, P.O. Box 95, Boxford, MA 01921

To Grantee: ECGA, 82 Eastern Avenue, Essex, MA 01929

X. ESTOPPEL CERTIFICATES

Upon request by the Grantor, the Grantee shall within thirty (30) days execute and deliver to the Grantor any document requested, including an estoppel certificate, which certifies the Grantors' compliance with any obligation of the Grantor contained in this Conservation Restriction, and which otherwise evidences the status of this Conservation Restriction.

COMMONWEALTH OF MASSACHUSETTS

On this 12th day of January, 2005, before me, the undersigned notary public, personally appeared Holly Gore and David F. Legalla, proved to me through satisfactory identification to be the persons whose names are subscribed to the foregoing instrument, and acknowledged to me that they signed it voluntarily for its stated purpose as on behalf of BTA/BOLT, Inc.

[Signature]
Notary Public
My commission expires 1/1/08

IN WITNESS WHEREOF, the said Judy Gore & David Ingalls have
hereunto set their hands and seals this 10th day of November, 2005.

By: Judy Gore

Name: Judy Gore

Title: President

Hereunto Duly Authorized

By: David P. Ingalls

Name: David P. Ingalls

Title: Treasurer

Hereunto Duly Authorized

COMMONWEALTH OF MASSACHUSETTS

Essex, ss.

COMMONWEALTH OF MASSACHUSETTS

On this 10th day of November 2005, before me, the undersigned notary public,
personally appeared Judy Gore and David P. Ingalls, proved to me through satisfactory
evidence of identification which was license to be the persons
whose names are signed on the preceding document, and acknowledged to me that they
signed it voluntarily for its stated purpose as on behalf of BTA/BOLT, Inc.

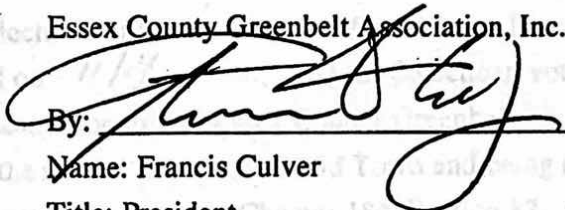
Robert T. Farber

Notary Public Robert T. Farber

My commission expires: 1/11/07

The Essex County Greenbelt Association, Inc. (ECGA) hereby accepts this Conservation Restriction and agrees to be bound by its terms.

Essex County Greenbelt Association, Inc.

By: 

Name: Francis Culver

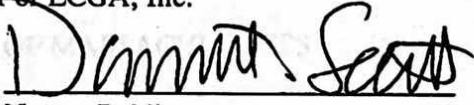
Title: President

Hereunto duly authorized

COMMONWEALTH OF MASSACHUSETTS

Essex, ss.

On this 16th day of November 2005, before me, the undersigned notary public, personally appeared Francis Culver, proved to me through satisfactory evidence of identification which was personal knowledge of identity to be the person whose name is signed on the preceding document, and acknowledged to me that he signed it voluntarily for its stated purpose as on behalf of ECGA, Inc.


Notary Public

My commission expires:



DAVID T. SANTOMENNA
Notary Public
Commonwealth of Massachusetts
My Commission Expires
February 7, 2008

APPROVAL BY SELECTMEN

We, the undersigned Board of Selectmen of the Town of Boxford, Massachusetts, hereby certify that at a meeting duly held on 11/14, 2005 the Selectmen voted to approve the foregoing Conservation Restriction to The Essex County Greenbelt Association, Inc. for the preservation of the natural resources of said Town and being in the public interest pursuant to Massachusetts General Laws Chapter 184, Section 32.

Barbara Jesel
Neil S. Plambeck
James M. Callahan
Stephen J. Davis

COMMONWEALTH OF MASSACHUSETTS

Essex, ss.

On this 14th day of November 2005, before me, the undersigned notary public, personally appeared Barbara Jesel, a member of the Boxford Board of Selectmen and proved to me through satisfactory evidence of identification which was license to be the person whose name is signed on the preceding document, and acknowledged to me that he/she signed it voluntarily for its stated purpose.

Robert T. Ford
Notary Public Robert T. Ford
My commission expires: 1/11/07

APPROVAL BY SECRETARY

The undersigned Secretary of the Executive Office of Environmental Affairs of the Commonwealth of Massachusetts hereby certifies that the foregoing Conservation Restriction to The Essex County Greenbelt Association, Inc. has been approved in the public interest pursuant to Massachusetts General Laws Chapter 184, Section 32.

Date: 12/14/05 Stephen R. Pritchard
Stephen R. Pritchard, Secretary
Executive Office of Environmental Affairs

COMMONWEALTH OF MASSACHUSETTS

Suffolk, ss.

On this 14th day of Dec. 2005, before me, the undersigned notary public, personally appeared Stephen Pritchard, proved to me through satisfactory evidence of identification which was personal knowledge of identity to be the person whose name is signed on the preceding document, and acknowledged to me that he/she signed it voluntarily for its stated purpose.

Julie Lind
Notary Public
My commission expires: 12/15/2011